WILLIAM CHAITEZVI
and
SANDRELLA M CHAITEZVI
versus
BRUCE MAKISI
and
NIGEL TAKAVARASHA
and
COMMISSIONER GENERAL POLICE N.O
and
THE OFFICER COMMANDING VTS N.O
and
THE SHERIFF OF THE HIGH COURT 5TH RESPONDENT

Urgent Chamber Application

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 13, 18,23 and 26 February 2026

C Warara, for the applicant
P Seda, for the 1st respondent

MAMBARA J:

[1] This is an urgent chamber application placed before the court in relation to execution upon a judgment obtained by the respondent and the execution steps that followed.

[2] During the course of the hearing, counsel for the respondent drew the court's attention to a supervening development. It was submitted that once the Sheriff received a letter from Messrs Kantor and Immerman, legal practitioners, advising that they had received instructions to issue interpleader summons, the Sheriff took an administrative decision to stay execution. That decision was communicated to the parties, and the Sheriff will stay execution pending the finalisation of the interpleader summons.

[3] In the premises, the relief sought in this urgent chamber application has been overtaken by events. There is no longer a live dispute requiring determination by the court, the Sheriff's administrative stay having rendered the application unnecessary and academic.

[4] It is therefore unnecessary to determine the points in limine raised in the opposing papers.

[5] The application is accordingly struck off the roll as moot.

Accordingly, it is ordered that:

The urgent chamber application is struck off the roll.

Each party shall bear its own costs.

MAMBARA J:……

Warara and Associates, applicant's legal practitioners
Muchada/Seda Corporate Attorneys, first respondent's legal practitioners